

		Case Management Conference continued to October 23, 2026 at 8:30 a.m. in Department C44. Defendant shall give notice.
4	Fang vs. Wang 2022-01292807	Motion for Reconsideration Continued to July 30, 2026 at 9:00 a.m. in Department CM02.
5	Ferrales vs. French Park Care Center 2021-01223996	Motion for Summary Judgment and/or Adjudication No tentative.
6	Fuller vs. AWP Incorporated 2026-01540086	<u>Motion for Leave to File First Amended Complaint</u> Plaintiff Cheryl Fuller’s Motion for Leave to File a First Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); <i>Atkinson v. Elk Corp</i> (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Leave to amend is warranted as the proposed amended pleading adds another entity alleged to be a joint employer of Plaintiff. (See <i>Morgan v. Super. Ct.</i> (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”]; <i>Kittredge Sports Co. v. Super. Ct.</i> (1989) 213 Cal.App.3d 1045, 1047 [“judicial policy favors resolution of all disputed matters in the same lawsuit”].) Defendant has failed to show any prejudice that would result from permitting the amendment. Defendant argues that the amendment would add new theories of liability and require additional discovery. This case is in early stages. A trial date has not even been set. Any increased discovery burden the proposed amendment may result in is not sufficiently prejudicial to deny Plaintiff’s proposed amendment. Defendant also challenges the legal sufficiency of the proposed amended complaint, arguing that Plaintiff has failed to make an

		evidentiary showing to support a joint employer theory. The court is not going to entertain assertions regarding the evidentiary support of Plaintiff's allegations in assessing a motion for leave to amend. Defendant can raise its challenges to the sufficiency of Plaintiff's claims in an appropriate proceeding. (See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 ["the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"].) Plaintiff shall separately file and serve the proposed First Amended Complaint within 5 days of this ruling. Separate filing of the proposed First Amended Complaint is required to ensure it is properly indexed in the Court's electronic filing system. The Case Management Conference currently set for July 10, 2026 is CONTINUED to November 20, 2026 at 8:30 a.m. in Department C44. Plaintiff shall provide notice.
7	Nunez vs. Toyota Motor Sales, U.S.A., Inc. 2025-01505232	<u>Demurrer to Complaint</u> Defendant Toyota Motor Sales, U.S.A., Inc.'s (TMS) demurrer to complaint is OVERRULED. TMS shall answer the complaint within 10 days. The complaint states facts sufficient to constitute the sixth cause of action for fraudulent concealment – inducement, with the requisite specificity. (See <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40-41, 43-44 [elements, specificity; duty to disclose, generally]; <i>Gilead Tenofovir Cases</i> (2024) 98 Cal.App.5th 911, 949 ["a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects"]; <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844; see also Compl. ¶¶ 7-9, 52-55, 57-78, 80, Ex. A.) The economic loss rule does not bar a claim for fraudulent concealment. (<i>Rattagan v. Uber Technologies, supra</i>, 17 Cal.5th at p. 38.) <u>Motion to Strike Portions of Complaint</u> Defendant TMS's motion to strike portions of complaint is DENIED.